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NATURE OF PROCEEDINGS: Hearing on Motion for Summary Adjudication

The Motion for Summary Adjudication is granted as to the fourth cause of action and denied as to the fifth cause of action.

BACKGROUND

Plaintiffs Deborah R. Toga and Arthur W. Toga (Plaintiffs) filed this action against American Honda Motor CO., Inc. (Defendant), alleging that they purchased a new 2020 HONDA PILOT whose 6-speed automatic transmission was defective and whose defect Defendant knew of before the sale and concealed.

The causes of action are: (1) Violation of Civil Code Section 1793.2, Subdivision (d); (2) Violation of Civil Code Section 1793.2, Subdivision (b); (3) Violation of Civil Code Section 1793.2, Subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement (Concealment).

Defendant filed a Motion for Summary Adjudication. Plaintiffs filed an Opposition.

REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of the file-stamped Complaint. The request is granted as to the existence of the pleading and the date of its filing, and not as to the truth of the matters alleged in it. (Evid. Code, § 452, subd. (d).)

EVIDENTIARY OBJECTIONS

Plaintiffs object on relevance grounds to UMF 4, that they served objection-only responses to Defendant's written discovery. The objection appears inside their separate statement, once under each of the two issues, and not as a separate document. (Pls.' Resp. to UMF 4.) Written objections to evidence "must be served and filed separately from the other papers in support of or in opposition to the motion," and "must not be restated or reargued in the separate statement." (Cal. Rules of Court, rule 3.1354(b).) Independently, "the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (Code Civ. Proc., § 437c, subd. (q).) The Court has considered UMF 4. It does not affect the disposition, so the objection is not material and the Court declines to rule on it. The objection is preserved for appellate review. (Ibid.)

LEGAL STANDARD

A party may move for summary adjudication of one or more causes of action, and the motion "shall be granted only if it completely disposes of a cause of action." (Code Civ. Proc., § 437c, subd. (f)(1).) A defendant "has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant … has met that burden, the burden shifts to the plaintiff … to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.)

"There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (Aguilar).) The Court "must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (Id. at p. 843.) It liberally construes the evidence in support of the party opposing the motion and resolves doubts concerning the evidence in that party's favor. (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389 (Dore).) It may not weigh the opposing party's evidence or inferences against the moving party’s as though it were sitting as the trier of fact. (Aguilar, supra, 25 Cal.4th at p. 856.)

The expiration of a limitations period is a complete defense. A defendant moving on that defense “carries its burden by presenting evidence establishing that the plaintiff’s claim is time barred.” (Genisman v. Carley (2018) 29 Cal.App.5th 45, 49.) “‘It then falls to plaintiff[] to counter with evidence creating a dispute about a fact relevant to that defense.’” (Ibid.)

ANALYSIS

I. Separate Statement

Plaintiffs argue that the Motion should be denied without reaching the limitations question, because the notice of motion states no issue for adjudication and the separate statement neither repeats an issue verbatim nor organizes its facts by issue. (Opp., pp. 4-7.) Defendant asks the Court to decide the Motion on its merits notwithstanding any defect. (Reply, p. 3.)

Where summary adjudication is sought, “the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Court, rule 3.1350(b).) The separate statement must separately identify each cause of action that is the subject of the motion and each supporting material fact claimed to be without dispute as to it, must follow the two-column format the rule prescribes, and on a motion for summary adjudication must carry a heading stating the issue. (Cal. Rules of Court, rule 3.1350(d)(1), (d)(3), (h).)

Here, the notice identifies the causes of action and the ground. Defendant seeks summary adjudication of Plaintiffs’ “Fourth Cause of Action (‘Breach of the Implied Warranty of Merchantability’) and Fifth Cause of Action (‘Fraudulent Inducement - Concealment’),” which “are time-barred by the applicable statutes of limitations.” (Notice of Motion, p. 2.) The separate statement does not repeat that language, carries no issue heading, and does not identify which cause of action each of its four facts supports. (UMF 1-4.) Rule 3.1350(b), (d)(1), (d)(3), and (h) are not satisfied.

“[T]he court’s power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory.” (Truong v. Glasser (2009)

181 Cal.App.4th 102, 118.) The requirement protects notice, because the separate statement exists “to inform the opposing party of the evidence to be disputed to defeat the motion.” (United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.) A court may decide the merits despite a rule 3.1350 violation where the opposing party knew of the ground, had an opportunity to address it on the merits, and was not impaired by the procedural defect from marshalling evidence of disputed facts. (Holt v. Brock (2022) 85 Cal.App.5th 611, 619-620.)

Plaintiffs responded to each of the four facts under each of the two causes of action, wrote the issue statements the separate statement omitted, and stated each in the terms of the limitations theory it addresses. They offered seven additional material facts directed to delayed discovery and briefed both accrual questions on the merits. (Pls.’ Resp. to UMF 1-4; AUMF 1-7.) Plaintiffs identified the issues that should have been stated and then met them, so they were neither misled about the ground nor impaired in marshalling evidence. The Court exercises its discretion to decide the limitations defenses.

II. Unnoticed Grounds

Plaintiffs argue that Defendant’s use of Soro v. FCA US, LLC (S.D. Cal., Feb. 19, 2026, No. 25-CV-02200-GPC-SBC) 2026 WL 473050 (Soro) to attack the sufficiency of the fraud allegations and Plaintiffs’ proof, together with its footnote contention that the fraud claim “lacks any evidence whatsoever and could be dismissed on substantive grounds as well,” reaches the merits of the fifth cause of action on a ground neither the notice nor the separate statement states. (Opp., pp. 7-8; Mot., p. 5, fn. 1.)

Summary adjudication is available only on a ground the moving party has identified. (Code Civ. Proc., § 437c, subd. (f)(1); Cal. Rules of Court, rule 3.1350(b).) The notice states one ground as to each cause of action, that it is time-barred, and the separate statement recites facts directed to accrual. Whether Plaintiffs can prove Defendant’s pre-sale knowledge of the transmission defect, its duty to disclose, their reliance, or their damages presents a different question, and the Court does not reach it. Defendant’s further contention that no transmission defect ever existed lies outside the noticed ground for the same reason. (Reply, pp. 1-3.) Defendant’s principal use of Soro is the accrual calculation, which is within the noticed ground. That decision is one of a federal district court, and no federal district court decision binds a California court.

III. Implied Warranty

Defendant argues that the fourth cause of action is barred by the four-year limitations period of Commercial Code section 2725, because that period began to run no later than April 10, 2021, one year after the sale, and expired before the Complaint was filed on June 26, 2025. (Mot., pp. 2-3.)

The Song-Beverly Consumer Warranty Act (the Act) contains no limitations provision, and the four-year period in Commercial Code section 2725 governs an action for breach of warranty brought under the Act. (Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 213-215 (Krieger).) Under that section, “[a] cause of action accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach,” and “[a] breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Cal. U. Com. Code, § 2725, subd. (2).) “[T]he general limitations rule for a breach of warranty cause of action is four years from the date the goods are delivered (regardless of the date the buyer discovers the breach), unless the ‘warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance ….’” (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 129 (Cardinal Health).) The statute preserves tolling doctrines. It “does not alter the law on tolling of the statute of limitations.” (Cal. U. Com. Code, § 2725, subd. (4).)

Plaintiffs purchased the vehicle on April 10, 2020, which is undisputed. (UMF 1; Toga Decl. ¶ 2.) The Complaint was filed on June 26, 2025, which is also undisputed. (UMF 3.) Measured from tender of delivery, the period expired on April 10, 2024, and the Complaint is 442 days late. Measured from April 10, 2021, the last day of the one-year implied warranty period and the date Defendant adopts, the period expired on April 10, 2025, and the Complaint is 77 days late. Defendant has carried its initial burden either way. To defeat the Motion, Plaintiffs must raise a triable issue as to delayed accrual or as to tolling of at least 77 days.

A. Delayed Accrual

Plaintiffs offer two theories for delaying accrual to their discovery of the breach. Neither theory delays accrual to Plaintiffs' discovery of the breach.

First, they argue that Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297 holds that Civil Code section 1791.1, subdivision (c) fixes when a latent defect must exist rather than when it must be discovered. (Opp., pp. 8-9.) However, Mexia states that a cause of action for breach of warranty accrues, at the earliest, upon tender of delivery, and it held the action before it timely because the complaint came within four years of that date. (Id. at p. 1306.) Mexia says nothing about a complaint filed more than four years from any accrual date. Defendant does not contend that the fourth cause of action fails because the transmission defect did not manifest within the one-year warranty period. It contends that the four-year limitations period expired.

Second, Plaintiffs argue that the exception in section 2725, subdivision (2) for a warranty explicitly extending to future performance delays accrual until discovery. The vehicle came with a Powertrain Limited Warranty of five years or 60,000 miles covering the transmission case, its internal parts, and the torque converter, and Plaintiffs argue that the implied warranty is coextensive with that express warranty for latent defect purposes, so the exception carries over. (Opp., pp. 9-10; Compl., Ex. A, p. 10.) Civil Code section 1791.1, subdivision (c) does make the implied warranty of merchantability coextensive in duration with an accompanying express warranty, but it expressly caps that coextensivity at one year following the sale of new consumer goods to a retail buyer. Duration is what the statute borrows, and a promise is not borrowed with it. The exception turns on an explicit undertaking about how the goods will perform in the future, and a warranty the Legislature imposes by operation of law makes no undertaking of that kind. Krieger applied the exception to an express promise to repair defects arising during a stated future period. (Krieger, supra, 234 Cal.App.3d at p. 217.) Cardinal Health held that "[b]ecause an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that 'explicitly extends to future performance of the goods ….'" (Cardinal Health, supra, 169 Cal.App.4th at p. 134.)

Plaintiffs also argue that the separate statement never establishes the one-year duration the theory depends on, because it recites only the three-year New Vehicle Limited Warranty. (Opp., p. 6; UMF 2.) The date of purchase is undisputed. (UMF 1.) The Motion measures from April 10, 2021, the last day of the one-year implied warranty period, a date Defendant adopted "giving Plaintiffs the fullest benefit of the doubt" instead of litigating when discovery occurred. (Mot., pp. 2-3; Reply, pp. 4-5.) The Court need not fix the accrual date, because Plaintiffs' claim is untimely on the date most favorable to them.

B. Repair Doctrine Tolling

Plaintiffs argue that the repair doctrine tolled the period during Defendant's repair attempts, and that the statute remained tolled so long as Plaintiffs reasonably relied on the dealers' repair-related representations. (Opp., p. 10.)

Repair tolling is preserved by California Uniform Commercial Code section 2725, subdivision (4), and is measured by reliance. "The statute of limitations is tolled where one who has breached a warranty claims that the defect can be repaired and attempts to make repairs." (Aced v. Hobbs-Sesack Plumbing Co. (1961) 55 Cal.2d 573, 585.) "Tolling during a period of repairs generally rests upon the same legal basis as does an estoppel to assert the statute of limitations, i.e., reliance by the plaintiff on the words or actions of the defendant that repairs will be made." (Cardinal Health, supra, 169 Cal.App.4th at pp. 133-134.) The period runs while the seller "honestly endeavors to make repairs to enable the product to fit the warranty or at least until such time as it becomes reasonably apparent to the owner that the warranty cannot be met." (Mack v. Hugh W. Comstock Associates (1964) 225 Cal.App.2d 583, 589.) The doctrine therefore has a duration, and the party invoking it must supply one.

Defendant answers with Ruiz Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 394, 396, which holds that a Song-Beverly warranty period is "tolled or extended under only three circumstances" named in Civil Code section 1795.6, and that instructing a jury that a warranty "continues in perpetuity until the defect has been diagnosed and fixed" was error. (Reply, pp. 5-6.) What Ruiz Nunez governs is the duration of a warranty. The phrase "statute of limitations" appears nowhere in the opinion, and section 1795.6 by its terms tolls and extends a "warranty period." (Civ. Code, § 1795.6, subds. (a), (b).) Plaintiffs invoke a limitations doctrine that section 2725, subdivision (4) expressly preserves. Defendant’s related point, that the vehicle was in the shop no more than ten days, applies the section 1795.6 measure to a question about reliance. (Reply, p. 6.) Defendant’s answer is therefore directed at the wrong doctrine. That does not relieve Plaintiffs of their own burden of production on the doctrine they invoked. (Code Civ. Proc., § 437c, subd. (p)(2).)

The burden requires a quantity. Defendant has shown the claim untimely by 77 days on the accrual date most favorable to Plaintiffs. Tolling suspends the running of the period and adds the suspended interval to its end, so Plaintiffs must produce evidence from which a trier of fact could find at least 77 days of reasonable reliance on words or actions that repairs would be made. If reliance began at the first repair visit on October 13, 2022, it must have continued to December 29, 2022. If it could begin only at the single service actually performed on November 2, 2022, it must have continued to January 18, 2023, which is 57 days after that service.

The record of the two visits is undisputed in substance. On October 13, 2022, at approximately 45,816 miles, Plaintiffs presented the vehicle to HONDA of Woodland Hills and reported that the transmission was not shifting correctly and that the vehicle struggled uphill. (AUMF 2; Toga Decl. ¶ 5, Ex. A.) The technician took electronic snapshots of the transmission, found hesitation, and recommended three transmission fluid flushes and a recheck. Plaintiffs declined the work because they were told it would cost thousands of dollars, and the repair order records that the customer declined all work. (Toga Decl. ¶ 5, Ex. A.) On November 2, 2022, Plaintiffs presented the vehicle to HONDA of Reseda, which found no diagnostic trouble codes, found the transmission fluid low, performed a drain and fill, and charged Plaintiffs for the service. (Toga Decl. ¶ 6, Ex. B.)

Deborah R. Toga declares that at each visit the dealer treated the transmission symptoms as a routine fluid or maintenance condition that could be addressed through fluid service and represented that the vehicle was safe to drive; that no dealer told him the transmission had a known or systemic defect or that the condition might not be fully repairable; and that he trusted those representations and believed the dealer was acting in good faith. (AUMF 3-4; Toga Decl. ¶ 7.)

Taken as true, that testimony does not supply a period. It is undated in both directions. It identifies no statement by any dealer after November 2, 2022, and no belief held by Plaintiffs after that date. What the record does say about the period after November 2, 2022 runs the other way. On the one occasion a dealer prescribed a course of repair, Plaintiffs declined it, for a reason unconnected to any representation that repairs would be made. (Toga Decl. ¶ 5, Ex. A.) The November 2 service was a completed, paid drain and fill, not warranty work, and when it was finished nothing remained pending on which Plaintiffs could rely. (Toga Decl. ¶ 6, Ex. B.) Plaintiffs' own declaration then states that despite that repair, the transmission problems continued. (Ibid.) Under Mack, that is the point at which it became reasonably apparent to the owner that the service performed had not met the warranty, and it marks the end of a reliance period rather than its continuation. After November 2, 2022, the record contains no further visit, no call, no complaint, and no statement of continuing belief for the roughly thirty-two months until the Complaint was filed.

AUMF 3 asserts that at each service visit the dealer represented that the symptoms "could be resolved" and were "normal" for this model. The evidence cited for that fact is Toga's declaration and the two repair orders, and neither contains those representations. A separate statement is a vehicle for marshalling evidence, not a substitute for it. (Cal. Rules of Court, rule 3.1350(d)(3), (f)(2).)

There is a triable issue "if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar, supra, 25 Cal.4th at p. 850.) A trier of fact asked whether reasonable reliance on words or actions that repairs would be made persisted to December 29, 2022, or to January 18, 2023, would have nothing on this record from which to answer yes: no repair pending, no representation identified as of any date in that window, no testimony that Plaintiffs were then waiting on anything, and the declarant's own statement that the service performed had not worked.

Plaintiffs have not raised a triable issue as to tolling of 77 days, and the fourth cause of action is time-barred. Accordingly, the Motion for Summary Adjudication is granted as to the fourth cause of action.

IV. Concealment

Defendant argues that the fifth cause of action is barred by the three-year period of Code of Civil Procedure section 338, because the concealment is alleged to have occurred at the sale on April 10, 2020, and Plaintiffs have produced no evidence of delayed discovery. (Mot., pp. 3-5.)

An action for relief on the ground of fraud “is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud.” (Code Civ. Proc., § 338, subd. (d).) Suspicion rather than certainty starts the period. “[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 803.) “Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights.” (Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1111 (Jolly).) A plaintiff “need not be aware of the specific ‘facts’ necessary to establish the claim; that is a process contemplated by pretrial discovery.” (Ibid.) Where suit comes more than three years after the fraud, “plaintiff has the burden of pleading and proving that he did not make the discovery until within three years prior to the filing of his complaint,” and must “affirmatively excuse his failure to discover the fraud within three years after it took place, by establishing facts showing that he was not negligent in failing to make the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry.” (Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412, 437.) The Court of Appeal has applied that formulation to a defendant’s summary judgment motion under section 338, subdivision (d). (See Vera v. REL-BC, LLC (2021) 66 Cal.App.5th 57, 69.)

Here, the Complaint alleges that Defendant concealed the transmission defect when it allowed the vehicle to be sold, and that Plaintiffs discovered the wrongful conduct “shortly before filing this Complaint.” (Compl. ¶¶ 24, 47-48, 51.) The sale occurred on April 10, 2020, which is undisputed. (UMF 1; Toga Decl. ¶ 2.) The Complaint was filed June 26, 2025. (UMF 3; RJN, Ex. A.) The concealment alleged therefore preceded suit by more than five years, and Defendant has met its initial burden. The burden shifts to Plaintiffs to produce evidence that would permit a finding of delayed discovery.

Three years before the filing is June 26, 2022. The only evidence bearing on the period before that date is Deborah R. Toga’s account of when the symptoms began. He declares that the transmission first hesitated, lagged on grades, and shifted harshly in or about September or October of 2022, and that the symptoms began shortly before the first repair visit. (AUMF 1; Toga Decl. ¶ 4.) He also declares that he had no reason to suspect pre-sale knowledge or concealment until the vehicle “began to manifest the issues with the transmission in mid-2022.” (Toga Decl. ¶ 9.) The two paragraphs describe the same event, the onset of the transmission symptoms, and paragraph 9 gives an approximation where paragraph 4 gives a date and ties it to the October visit. Read together and construed liberally, the declaration places the onset after June 26, 2022. (Dore, supra, 39 Cal.4th at p. 389.) A buyer whose vehicle has exhibited no symptom has no reason to suspect an injury, and without an injury there is nothing to attribute to a wrongful cause.

Defendant responds that the declaration is self-serving and that the Court must “disregard contradictory and self-serving affidavits,” and it observes that Plaintiffs produced the repair orders for the first time with the Opposition. (Reply, p. 2, fn. 1; p. 7.) The decision Defendant quotes permits a court to disregard a declaration that contradicts the declarant’s own discovery responses, and it states the limit on that rule. “‘[W]hile the D’Amico [v. Board of Medical Examiners (1974) 11 Cal.3d 1.] rule permits a trial court to disregard declarations by a party which contradict his or her own discovery responses (absent a reasonable explanation for the discrepancy), it does not countenance ignoring other credible evidence that contradicts or explains that party’s answers or otherwise demonstrates there are genuine issues of factual dispute.’” (Whitmire v. Ingersoll-Rand Co. (2010) 184 Cal.App.4th 1078, 1087, quoting Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1524-1525.) No deposition testimony or writtne discovery is before the Court, and Plaintiffs’ objection-only responses admitted nothing the declaration contradicts. Outside that circumstance the Court may not weigh the opposing party’s evidence or judge a declarant’s credibility. (Aguilar, supra, 25 Cal.4th at p. 856.)

The question is therefore whether Plaintiffs’ cause of action accrued before June 26, 2022. “While resolution of the statute of limitations issue is normally a question of fact, where the uncontradicted facts established through discovery are susceptible of only one legitimate inference, summary judgment is proper.” (Jolly, supra, 44 Cal.3d at p. 1112.) The only event that could have given Plaintiffs reason to suspect an injury before that date is the appearance of the transmission symptoms, and the evidence places that appearance after it. A buyer whose vehicle has exhibited no symptom has no reason to suspect an injury, and without an injury there is nothing to attribute to a wrongful cause. On this record a trier of fact could find that the period had not begun to run when the Complaint was filed three years later. The Court need not determine the date on which the cause of action did accrue, because on Plaintiffs' evidence it did not accrue before June 26, 2022. Accordingly, the Motion for Summary Adjudication is denied as to the fifth cause of action.

CONCLUSION

The Motion for Summary Adjudication is granted as to the fourth cause of action and denied as to the fifth cause of action.